

Definition of law

(1) : a binding custom or practice of a community : a rule of conduct or action prescribed (see prescribe sense 1a) or formally recognized as binding or enforced by a controlling authority. (2) : the whole body of such customs, practices, or rules. The courts exist to uphold, interpret, and apply the **law**.

A body of rules of conduct of binding **legal** force and effect, prescribed, recognized, and enforced by controlling authority. In U.S. **law**, the word **law** refers to any rule that if broken subjects a party to criminal punishment or civil liability. ... Moreover, U.S. **law** is not static.

According to Blackstone-Stripped of the necessity of an enforcement agency (government), the term **law** has been **defined**, simply, as: ... William **Blackstone** **defined law** as: "A rule of ... conduct prescribed by the supreme power in a state, commanding what is right and prohibiting what is wrong."

According to Austin-**Law**, **according to Austin**, is a social fact and reflects relations of power and obedience. ... Such commands give rise to **legal** duties to obey. Note that all the key concepts in this account (**law**, sovereign, command, sanction, duty) are defined in terms of empirically verifiable social facts.

Classification of law

A particular **classification of law** encompasses all types of **law** but it distributes them according to a particular unique characteristic. The following are the major **classifications of law**: Public and Private **Law**. Civil **Law** and Criminal **Law**. Substantive and Procedural **Law**.

Purposes of law

→ Ensure Justice

The law serves many purposes. Four principal ones are establishing standards, maintaining order, resolving disputes, and protecting liberties and rights.

Establishing Standards

The law is a guidepost for minimally acceptable behavior in society. Some activities, for instance, are crimes because society (through a legislative body) has determined that it will not tolerate certain behaviors that injure or damage persons or their property. For example, under a typical state law, it is a crime to cause physical injury to another person without justification—doing so generally constitutes the crime of assault.

Maintaining Order

This is an offshoot of establishing standards. Some semblance of order is necessary in a civil society and is therefore reflected in law. The law—when enforced—provides order consistent with society's guidelines. Wildlife management laws, for example, (such as West Virginia's prohibition against using ferrets for hunting,) were first passed in an effort to conserve game that had nearly been hunted into extinction during the nineteenth century. Such laws reflect the value society places on protecting wildlife for future generations to enjoy.

Resolving Disputes

Disputes are unavoidable in a society comprised of persons with different needs, wants, values, and views. The law provides a formal means for resolving disputes—the court system.

Advantages of law.

Law provides uniformity and certainty to the administration of justice. The uniformity and certainty of law add to the happiness and convenience of the people. The rules and regulations provide or make smooth path to drive with relative safety, without these rules it would have been impossible for people to attend their offices daily I time. Society is becoming more and more complicated everyday and without the existence of an elaborate system of laws, it is not possible to live in society.

Rule of law has its own strength for protecting human rights, resolving dispute and establishing a peaceful society, Therefore, rule of law will protect the society from any kind of crime, anarchy, inequality and it will defence everyone to get their proper judgement.

Prevention of crime Act- 1953(Act of UK), that restricts or banning weapons from all civilians, regardless of their intention, from public places would reduce violent crime.

Punishment to the accused, according to [REDACTED], it prescribed offences and punishment for the same. For many offences only the maximum punishment is given and for some offences the minimum may be prescribed. According to sec-302 punishment of murder shall be punished with death or imprisonment for life and shall also be liable to fine, it is clearly identified-non bail able.

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Advantages:

- Protection of rights of an individual.
- Determine the duties.
- Prevention of offences.
- Punishment to the accused.
- Compensation and justice to the aggrieved person.
- Making rules for smooth functioning.

Disadvantages of law.

- a. Rigidity of law One disadvantage is the rigidity of law. An ideal legal system keeps on changing according to the changing needs of the people. Law must adjust itself to the needs of the people and cannot isolate itself from them. However, law is not usually changed to adjust itself to the needs of the people.
- b. conservative nature Both the lawyer and judges favour the continuation of the existing law. The result is that very often law is static. This is not desirable for a progressive society.
- c. Formalism More emphasis is put on the form of law than its substance. A lot of time is wasted in raising technical objections of law which have nothing to do with the merits of the case in dispute.
- Complexity It is true that every effort is made to make law as simple as possible but it is not possible to make every law simple. That is due to the complex nature of modern society. Lawyers also insist on drawing fine distinctions on the various points of law.

* Formal

* Expensive

